

		to Plaintiffs. (Compl. at p. 7, ¶ 2.) The allegation of driving under the influence is the type of conduct Dawes expressed was not the same as the type of conduct that supported a potential punitive damage award. Further, there are no factual allegations that would support a finding that Defendant’s decision to leave the scene created a probable risk of injury to Plaintiffs, such that a trier of fact could find that Defendant’s act constituted a willful and conscious disregard to the safety of Plaintiffs. Accordingly, the Motion to Strike is GRANTED with 20 days leave to amend. Moving Party to give notice
104	Bonakdar vs. Bonakdar 25-01527577	1. Demurrer to Complaint Defendant Zinab Bonakdar aka Sofia Bonakdar (“Defendant”) demurs to Plaintiff Zahra Bonakdar’s (“Plaintiff”) Complaint. The Complaint contains one cause of action for declaratory relief. Plaintiff failed to oppose the demurrer. Based on the non-opposition, the Court may “deem plaintiff[] to have abandoned the issues” or “claims” addressed in the Demurrer. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) The non-opposition is consider an implied concession to the merit of Defendants’ arguments presented in the Demurrers and Motions to Strike. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that

“by failed to address” an issue, the issue is “impliedly concede[d].”]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)

The Court will allow Plaintiff an opportunity to cure any deficiencies in the Complaint. As such, the Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND.

If a First Amended Complaint is not timely filed within 20 days of this order, the Court will consider the case abandoned and the Case will be dismissed.

Plaintiff to give notice.

2. Motion to Expunge Lis Pendens x 2

Defendant Zinab Bonadkar aka Sofia Bonadkar (“Defendant”) filed two motions to expunge lis pendens. In the motions, Defendant seeks to expunge the lis pendens on the following properties: (1) 18 Narbonne, Newport Beach, California, 92660 and (2) 15062 Lorenat Street, Irvine, California, 92604. Plaintiff seeks \$4,015 in attorney fees for the Newport property and \$4,015 in attorney fees for the Irvine property.

Plaintiff untimely opposed the Motion. The Court, however, will consider the untimely opposing papers. “[A] trial court has broad discretion to accept or reject late-filed papers.” (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline

without a prior court order finding good cause for late submission.”].)

In addition, the Court notes that Plaintiff has not established that the opposing papers were properly served. There are no proofs of service filed with the opposing papers. The Court also notes that pursuant to Code of Civil Procedure section 1010.6(c), Defendant shall serve Plaintiff by mail since she is self-represented unless Plaintiff consented to service by email.

Moving to the merits of the motion, and after considering the untimely opposing papers, the Court finds that Plaintiff has not carried her burden and therefore the Motions are GRANTED.

A lis pendens will be expunged if: (1) the pleading on which the lis pendens is based does not contain a real property claim; or (2) the claimant cannot establish the probable validity of its real property claim(s) by a preponderance of the evidence. (Code of Civ. Proc., §§ 405.31 and 405.32.) Thus, the party opposing a motion to expunge has the burden of showing both the existence of a real property claim and the probable validity of that claim. (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647; Code of Civ. Proc., § 405.30.)

To overcome the motion to expunge, Plaintiff must establish “it is more likely than not it will obtain a judgment” on its real property claim. (Code of Civ. Proc., § 405.) Plaintiff’s showing must be by a preponderance of the evidence. (Code of Civ. Proc., § 405.32.)

Here, Plaintiff has not established the probable validity of her real property claim by a preponderance of the evidence. As an initial matter, in her opposing papers, Plaintiff argues that the First Amended Complaint is the operative complaint. This is not so. Plaintiff’s First Amended Complaint was as is not reflected in this

	Case’s Register of Actions. As such, the Court will only consider the original (and operative) Complaint in analyzing these motions. The operative Complaint for declaratory relief, which was filed on 11/20/2025, asks the Court to for a judicial declaration that (1) Plaintiff is the vested owner of a 25% interest in the Irvine Property and (2) Plaintiff is the vested owner of a 50% interest in the Newport Beach Property. Given the record of evidence submitted by both parties, the Court is unable to determine that Plaintiff is more likely than not it will obtain a judgment. The record reflects competing evidence, the credibility of which the Court cannot determine on the papers. For this reason, the Motions are GRANTED. Defendant asks the Court to consider the Minute Order dismissing Plaintiff’s Petition in Case No. 2024 01408741. The Court will do so. Still, the impact of this Minute Order on Plaintiff’s ability to file and pursue this action appears to be without consequence since that dismissal was made without prejudice and is therefore not a final judgment on the merits such that future action on the same subject is barred. (Association of Irrigated Residents v. Department of Conservation (2017) 11 Cal. App. 5th 1202, 1220.) Moreover, the court finds that adequate relief can be secured to Plaintiff by the giving of an undertaking. (Code Civ. Proc., § 405.33.) Defendant shall provide an undertaking in the amount of _____. The parties shall be prepared to discuss a suitable undertaking at the hearing. Defendant’s request for attorney fees is GRANTED in the amount of \$760 per motion (2 hours at \$350/hour plus \$60) for a total of \$1,520 pursuant to Code of Civil Procedure section 405.38. (Code Civ. Proc., § 405.38.)
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		Plaintiff's Requests for Judicial Notice are GRANTED. The Court notes, however, that a "court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (People v. Franklin (2016) 63 Cal.4th 261, 280.) In addition, while "Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, [they] do not take judicial notice of the truth of the factual matters asserted in those documents." (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400, as modified (Jan. 6, 2023) [emphasis in original].) The parties shall also be prepared to discuss the status of Case No. 2024 01408741 and whether this case should be stayed pending the resolution of Case No. 2024 01408741. Defendant to give notice 3. Case Management Conference
106	Bake & Rockfield, LLC vs. Monopoly Business Park Association 22-01243053	1. Motion for Entry of Judgment Plaintiff Bake & Rockfield, LLC ("Plaintiff") moves for an order entering judgment in its favor against defendant Monopoly Business Park Association ("Association") on Plaintiff's Declaratory Relief cause of action pursuant to the Court's November 14 and 18, 2025 Orders. The Court's November 14 and 18, 2025 Orders provide: 1. The Association is obligated pursuant to the Declaration of Covenants, Conditions and Restrictions ("Project Declaration") to maintain the Common Area pursuant to the terms of the Project Declaration and Section 5.2 of Article 5 of the General Conditions, as